Fair Competition and Opportunity Access Act

A citizen-proposed legislative initiative by Jonathan Michael Dionisio. Presented to Congress and state lawmakers for consideration, October 2026. This proposal has not been enacted into law.

I am a private citizen sharing a proposal for fairer access to markets, public visibility, and civic participation. I am not a politician. My website, https://rhymedial.com, shares my designs, creative projects, and ideas so readers can understand a little about me. This proposal concerns independent businesses, creators, emerging leaders, political candidates, and other newcomers who face barriers to reaching the public.

A person can upload a song and still have almost no practical access to the market for music. The ability to place a file on a server is different from the ability to reach listeners, develop customers, and earn income. When a small number of gateways organize discovery, formal permission to participate may coexist with severe economic exclusion. This essay calls that condition an economic blockade: a barrier between creative work and a meaningful opportunity to find its audience.

The term is an economic and political argument, not a claim that a military blockade exists or that every platform has committed an antitrust violation. Its purpose is to identify a problem that the language of free uploading can conceal. An open registration form does not establish an open marketplace. Access must also be considered at the level of discovery, distribution, bargaining power, and the ability to leave.

The Fair Competition and Opportunity Access Act would support independent routes to customers, audiences, and public participation. Dedicated discovery services could voluntarily reserve opportunities for smaller and lesser-known participants under transparent, sector-appropriate eligibility rules. Established success should not be the only practical route to being discovered. The following essay uses creative markets as one important example of a broader problem.

An open door can lead to a closed market

Imagine a public marketplace where anyone may rent a stall, but almost all entrances, signs, and shopping directions lead to a few familiar sellers. The remaining vendors are technically present. They can truthfully be told that nobody prohibited them from doing business. Yet the arrangement may give customers little practical opportunity to discover their work. This is the distinction between permission to enter and effective access to demand.

Online creators face a comparable question. Their work may be available through a direct link while remaining difficult to encounter through recommendations or ordinary browsing. Availability matters, but it is only one part of distribution. An audience cannot evaluate a creator it never encounters. A claim that the best work always rises to the top therefore assumes the very opportunity that needs to be examined.

This does not mean every unsuccessful upload was suppressed. Audiences have preferences, many works compete for limited time, and some content fails to connect even after substantial exposure. The stronger argument is structural: a market should offer multiple realistic routes for discovery, allowing creators to test demand without depending entirely on a single company or an inherited audience.

Fair competition requires room for that test. It does not require equal sales, identical recommendation counts, or government approval of artistic merit. A newcomer should have an opportunity to receive an informed response from potential listeners. That is a narrower and more defensible goal than promising fame to everyone who uploads.

Visibility is an economic input

For an independent musician, visibility can lead to ticket sales, commissions, subscriptions, merchandise purchases, and collaborations. For a designer, it may produce the first customer who funds the next prototype. For a writer, it can create the readership necessary to justify continuing a book. Exposure is not itself income, but it is often part of the path through which creative labor becomes financially sustainable. For a small business, discovery may bring its first customers; for an emerging community leader or political candidate, visibility may allow people to hear and evaluate an unfamiliar proposal. These forms of access require different rules and measures, but all deserve consideration.

When discovery is scarce, creators may spend time promoting work instead of making it. Some can purchase advertising or hire assistance; others cannot. This produces a potential cycle in which people with resources can repeatedly buy access to audiences, while those who most need an initial opportunity have the least ability to finance it. The mechanism is plausible even without assuming a deliberate agreement against newcomers.

The blockade argument concerns these accumulated obstacles. A single disappointing result does not prove market foreclosure. But repeated dependence on expensive promotion, uncertain recommendations, and a limited set of distribution gateways can make entry economically fragile. Policy should investigate those conditions with evidence rather than dismissing every complaint as personal disappointment.

A separate discovery environment would treat attention as something that requires institutional design. It would ask who receives an initial opportunity, how frequently the same names recur, and whether the service helps users find work they would otherwise miss. Those questions belong in discussions of economic opportunity as well as discussions of entertainment.

The same names, over and over again

Lawmakers should examine the recurring public experience of being asked to watch, hear about, and discuss the same established personalities over and over again. A familiar name can appear in a recommendation, a promoted clip, a reaction video, a controversy, and a commentary thread. Even criticism can become another vehicle for circulating the original name. Meanwhile, an unfamiliar creator may struggle to secure a first substantial introduction.

The complaint is not that a law literally requires everyone to listen. It is that participation in widely used cultural spaces can come with persistent exposure to a narrow set of people. Avoiding one video may not prevent related coverage from appearing through another channel. Congress should investigate the frequency and distribution of such repetition rather than assume that the presence of a skip button establishes meaningful choice.

This matters economically because attention devoted to repeated coverage cannot simultaneously introduce unfamiliar work. Public conversation becomes a distribution channel for those already in it. Emerging creators compete not only against a song or video but against the accumulated repetition surrounding its performer. This is a proposed mechanism of exclusion to investigate, not a measured claim that all feeds contain the same material.

I ask lawmakers to support services where unfamiliarity is a reason to offer discovery, and where users can voluntarily choose emerging creators, reduce repeat recommendations, and exclude names they do not want promoted. The objective is freedom to encounter something different without having to leave ordinary digital life altogether.

What recommendation research supports

Research offers support for investigating popularity bias, while also placing limits on broad claims. Klimashevskaia, Jannach, Elahi, and Trattner review evidence that recommendation algorithms in many studied settings favor already popular items and may reinforce that concentration over time. They also emphasize limitations in the literature, including its heavy reliance on computational experiments. [1]

This supports a serious policy question about discovery. It does not establish that YouTube deliberately hides all independent musicians, that every recommendation system behaves identically, or that a particular creator lost a calculable amount of money. Those conclusions would require additional evidence about the relevant service and its actual users.

An honest reform campaign should preserve that distinction. Research can identify mechanisms worth testing without answering every question about commercial intent or legal liability. Advocates should request carefully designed studies, access for independent evaluation where lawful, and published results that include failures as well as successes.

The recommendation for separate emerging-creator platforms is therefore a policy inference. If existing systems can amplify accumulated popularity, it is reasonable to test institutions designed around discovery among less established contributors. The case becomes stronger when those institutions demonstrate repeat use, creator retention, and meaningful audience development rather than relying only on criticism of incumbents.

Monopoly findings must stay within their markets

There is concrete legal history behind concerns about digital gatekeeping. The Department of Justice reported a 2024 district-court finding that Google unlawfully maintained monopoly power in general search services and general search text advertising. It later described a September 2025 remedies order addressing distribution agreements and access to certain search-related resources. [2]

Those findings concern particular markets and conduct. They are not a ruling that every Google product is an unlawful monopoly, and they do not establish that mainstream musicians collectively monopolize entertainment. Google Chrome, Microsoft Edge, Google Search, and YouTube also perform different functions. A serious proposal must identify which market and which barrier it addresses.

The search case matters here because it illustrates how distribution arrangements can affect the ability of rivals to compete. The essay draws that conceptual lesson without claiming that a search judgment automatically resolves questions about creator recommendations. Whether any other practice violates antitrust law depends on its own facts, legal elements, and procedural record.

Advocates gain credibility by distinguishing established findings from proposed interpretations. An emerging-creator initiative can be justified as a way to expand opportunity even where no unlawful monopoly has been proven. Supporting additional routes to market is a policy choice; accusing a specific business of unlawful exclusion is a separate assertion requiring evidence.

Defining the economic blockade

The economic blockade described here has three dimensions. The first is dependence: creators may feel they must use the same few gateways to reach a viable audience. The second is cumulative disadvantage: limited exposure can restrict the signals and resources that might unlock later opportunities. The third is weak exit: leaving may mean losing convenient access to followers and starting again elsewhere.

These dimensions can exist to different degrees. They should be measured separately rather than compressed into a single accusation. A creator might have strong direct sales but weak video discovery. Another might receive many views while being unable to convert that attention into sustainable income. The remedy should fit the obstacle.

Calling this a blockade is an argument about consequences, not necessarily intentions. Harmful patterns can emerge from business incentives, user habits, technical design, or commercial agreements without a coordinated plan against small creators. The absence of a conspiracy does not make the distribution of opportunity irrelevant.

The term should also remain open to challenge. If evidence shows that a proposed barrier is small, easily bypassed, or outweighed by substantial opportunities elsewhere, the argument must adjust. A persuasive essay should invite investigation of economic exclusion rather than use a powerful phrase to substitute for investigation.

Social influence and the manufacture of familiarity

The claim that visibility simply reflects merit deserves scrutiny. Salganik, Dodds, and Watts conducted an artificial music-market experiment with 14,341 participants. Stronger social influence increased inequality and unpredictability in song success, while quality explained only part of the outcome. This was an experiment, not a direct audit of today's commercial platforms, but it challenges the assumption that popularity is a pure measure of artistic quality. [5]

Repetition can also affect preference. A 2017 meta-analysis by Montoya and colleagues found that the exposure-liking relationship varied by conditions and often followed an inverted-U pattern; its reported pattern differed for visual and auditory stimuli. This does not prove that replaying a musician guarantees affection or sales. It supports caution about treating preferences as wholly independent of exposure. [6]

The policy inference is that repeated visual promotion of established names may influence the conditions under which audiences choose. A public repeatedly shown familiar personalities is not evaluating every emerging alternative under equal conditions. Congress should commission research that distinguishes user-requested repetition from platform-selected repetition and tests whether controls improve satisfaction.

Established commercial backing compounds the design question. A celebrity's new account may begin with few displayed views while retaining publicity and outside reach. Eligibility should therefore examine substantial ownership and backing as well as account metrics, with simple declarations, proportionate review, and an appeal process for small independent applicants.

Separate platforms as additional routes to market

A dedicated service could offer a recognizable promise: the businesses, creators, or civic participants featured here are still building their reach. Separate programs could help users find independent sellers, unfamiliar artists, or emerging community voices. A civic service would use transparent, viewpoint-neutral eligibility standards and preserve the public’s freedom to choose whom to support.

This approach leaves audiences free to enjoy established performers elsewhere. Its value is the creation of additional institutions with a different distribution mission. It does not depend on removing mainstream work from the internet or declaring popular artists undeserving of success.

A new service must still earn trust. It needs reliable playback, useful search, responsive support, and enough appealing work to make discovery worthwhile. Eligibility restrictions cannot compensate for a product people do not want to use. Design and operating quality are therefore central economic requirements.

Multiple services would be preferable to one officially favored replacement. A cooperative music platform, an independent video service, and a regional arts network might use different methods while serving the same broad purpose. Their coexistence would create opportunities to compare results and reduce dependence on any single new gatekeeper.

A practical eligibility framework

Eligibility should match the sector. Creative discovery might consider audience size and substantial commercial backing; business programs might consider revenue, ownership, and market reach. Civic and political participation would require a separately reviewed framework that respects speech, election rules, and equal treatment. No single view-count threshold can fairly govern every field.

Different media may require different thresholds. A view on a brief video is not economically identical to a paid subscriber or an album purchase. Policymakers should consult creators across fields and publish why a particular measure is used. The goal is to identify emerging status without pretending that one metric captures all influence.

Verification should be proportionate. Most applicants could provide a short declaration and public account links, with deeper review reserved for disputed or unusually influential accounts. A system that demands extensive financial records from every small creator could create a new administrative blockade.

Applicants should receive a reason when excluded and a way to correct mistakes. Account size may fluctuate, ownership information may be incomplete, and similarly named performers can be confused. Transparent decisions protect both the integrity of the service and the dignity of the people applying to use it.

Graduation should reward growth

A platform for emerging creators must explain what happens when it succeeds. Abruptly removing a person at the moment an audience develops could punish the achievement the institution was built to encourage. Permanent eligibility, however, could gradually turn the service into another marketplace dominated by established names.

A graduation period offers a middle course. Once a creator crosses the relevant limits, the service could provide notice and a reasonable transition. Their archive could remain accessible while their work gradually leaves discovery areas reserved for eligible participants. The exact design should be tested with creators and users.

Audience relationships should not vanish during that transition. Creators could retain links, export permitted records, and invite followers to continue through channels for which those followers have consented. Followers must remain free to decline; portability should not become permission to distribute private information.

Graduation also creates a useful public measure. A service can report how many participants developed sustained audiences and how much discovery space returned to newcomers. The purpose is a continuing cycle of entry and growth, rather than a permanent roster of favored beneficiaries.

Fair discovery inside the new platform

A newcomer-only service can still reproduce concentrated attention. A handful of participants may receive nearly every recommendation while thousands remain technically available. Restricting membership is therefore insufficient unless the service also examines how it allocates discovery opportunities.

One approach is a clearly labeled discovery mode that users choose themselves. It could introduce eligible work from different audience bands, genres, languages, or locations. Another approach is a rotating editorial showcase with published selection criteria. These mechanisms should remain transparent about their purpose and limits.

Paid promotion requires particular care. If the platform sells every valuable position to the highest bidder, it can recreate the financial barrier it promised to reduce. A supported pilot could cap or separate paid placements, label sponsorship clearly, and preserve meaningful discovery areas that cannot be purchased.

Fairness should be assessed over time. Useful measures include the distribution of first-time impressions, repeat engagement after an initial introduction, and whether creators in different audience bands receive opportunities to test demand. None of these measures should be mistaken for a guarantee that every work will attract the same response.

The requested pilot should also test user-controlled repetition limits, a working hide-this-creator control, and an emerging-only discovery option. These are proposed features for participating services, not an assertion that government may dictate every private feed. Published evaluation should ask whether those controls function as users expect, including across reposts where identification is reliable.

Independence requires governance

A platform can describe itself as independent while depending on a single powerful owner, donor, advertiser, or distributor. Its public identity may conceal incentives that steer attention toward affiliated work. A reform proposal should therefore look beyond branding to the institutions that make decisions.

Participating services could disclose controlling ownership, significant commercial relationships, and conflicts affecting promotion. Creator representation on an advisory body could provide practical feedback, while an independent appeals process could address disputed eligibility and enforcement decisions. These are proposed safeguards, not assurances that every conflict can be eliminated.

Cooperative ownership is one option, but it is not the only legitimate structure. A small private company, nonprofit, public-benefit enterprise, or creator cooperative might each serve the mission under appropriate rules. A program should evaluate actual conduct and accountability rather than assuming that a particular legal form guarantees fairness.

Government support must not become political control of artistic expression. Funding criteria should concern the program’s defined economic purpose and lawful operational requirements. Public officials should not use grants to demand praise, suppress criticism, select acceptable music styles, or reward partisan loyalty.

Congress should address audience autonomy alongside creator opportunity. The FTC’s 2022 report describes interface practices that can undermine consumer choice, including disguised advertisements. It does not classify ordinary celebrity recommendations as dark patterns. Its relevance is the need to examine how choices are presented and whether commercial promotion is honestly disclosed. [7]

A proposed Fair Competition and Opportunity Access Act

This essay proposes the Fair Competition and Opportunity Access Act, a citizen-proposed legislative initiative rather than an existing statute or an introduced bill. Its purpose is to expand access to markets, public visibility, and opportunities for participation by reducing unfair barriers facing smaller and lesser-known participants across business, media, culture, and civic life.

The central instrument could be competitive grants for development and operation. Applicants would explain their eligibility rules, governance, accessibility, privacy protections, sustainable business model, and plan for evaluating discovery. Awards should be available to multiple qualified operators so that public support does not establish a single privileged substitute.

Funding should require a defined budget, reporting obligations, and a sunset or renewal review. A program that cannot demonstrate useful results should be revised or ended. Legislators should ask for realistic cost estimates rather than treating the phrase digital platform as a complete operating plan.

The act could also authorize research on distribution barriers and voluntary technical standards that reduce switching costs. These measures would complement, rather than replace, existing competition enforcement. A grant program addresses a policy gap; it does not decide whether a particular company violated the Sherman Act.

The proposed scope includes independent businesses, creators, emerging leaders, political candidates, and other newcomers. Potential benefits include more routes to self-employment, customer discovery, community participation, and public debate. Each program should be evaluated on its own purpose. Support for civic participation must not become a subsidy for a preferred party, candidate, or viewpoint.

Constitutional care strengthens the proposal

A requirement that existing private platforms carry, exclude, or prioritize specified speakers raises constitutional questions. In Moody v. NetChoice, the Supreme Court discussed First Amendment protection for certain platform editorial choices and returned the cases for the proper analysis of the challenged laws. The decision makes careful legal design essential. [3]

The proposal here therefore emphasizes support for independent services that voluntarily adopt a mission serving smaller and lesser-known participants. It does not assume that calling a rule fair competition automatically makes compelled ranking lawful. Legislators would still need to review the actual terms of any program, including funding conditions and enforcement provisions.

Public support is not constitutionally consequence-free. Viewpoint discrimination, coercive conditions, and vague standards can create problems even when participation is described as voluntary. Drafting should focus on measurable emerging status and legitimate operating requirements rather than official preferences about what creators should say.

This care serves the underlying goal. A fragile law that promises immediate fairness but fails in court may consume resources without building alternatives. A more durable policy would expand institutions, preserve audience choice, and protect the independence of the people whose opportunity it seeks to improve.

Political and civic applications need separate specialist review before implementation. The proposal does not promise ballot access, campaign financing, equal media coverage, or electoral success. Its aim is to explore lawful, transparent opportunities for people to encounter emerging voices without government selection of political winners.

Portability and the ability to leave

An alternative platform is less useful if creators must surrender every connection when moving between services. The ability to maintain a public identity, link to outside work, and retain copies of original files can reduce dependence. Technical convenience should not quietly become a permanent claim over a creator’s business.

A supported service could provide accessible exports of uploaded content and ordinary account records. It could use stable public links and avoid unnecessary restrictions on promoting lawful work elsewhere. These proposals concern the design of participating platforms; they do not assume that every existing service must provide identical tools.

Follower information needs stricter treatment. A person who follows a musician on one service has not necessarily agreed to receive email or join another network. Any transfer of contact details must respect consent, privacy, and security. A creator’s freedom to leave cannot erase the audience’s freedom to control personal information.

Portability should also include realistic usability. An export that only a specialist can interpret may satisfy a formal requirement while offering little practical independence. Clear documentation and common formats would make the promise more useful to ordinary creators managing their own careers.

Answering the strongest objections

The first objection is that audiences prefer familiar names. Often they do, and they should remain free to choose them. The proposed service addresses users who also want unfamiliar work and creators who need a place to test demand. It expands the available experiences rather than declaring existing tastes illegitimate.

The second objection is that taxpayers should not subsidize an unsuccessful entertainment service. That concern justifies limited pilots, competitive awards, independent evaluation, and explicit renewal decisions. Support should depend on demonstrated public value, not on a permanent entitlement or an administrator’s enthusiasm.

The third objection is that view limits can be manipulated. Fake engagement, concealed ownership, and duplicate accounts are foreseeable problems. Proportionate verification, public rules, conflict checks, and appeals can reduce abuse. No eligibility system will be perfect, which is a reason to evaluate its operation rather than abandon all attempts at targeting assistance.

The fourth objection is that talent will succeed without intervention. Some creators do, and their success deserves recognition. It does not establish that distribution is equally contestable for everyone. The relevant policy question is whether additional institutions can uncover valuable work and support viable businesses that current arrangements miss.

Measuring whether the blockade is reduced

A pilot should begin with a baseline and a clearly stated theory of change. If it promises discovery, it should measure meaningful encounters with previously unfamiliar work. If it promises income opportunity, it should examine actual creator outcomes rather than treating raw impressions as sufficient proof.

Potential measures include repeat audience engagement, the number of distinct creators receiving substantive attention, voluntarily reported revenue bands, creator retention, and the distribution of exposure across eligible participants. Privacy-preserving aggregate reporting can provide accountability without publishing individual earnings.

Evaluation should also track costs and unintended effects. Does the service impose excessive paperwork? Do eligibility limits exclude promising participants unfairly? Are creators incentivized to avoid growth or manipulate account metrics? Do visitors return because they value the service, or only because promotion temporarily draws them in?

Where feasible, independent evaluators could compare different discovery designs or phased introductions. Findings should distinguish correlation from causation and report uncertainty. A credible reform campaign must be willing to discover that some methods fail. Learning which institutions work is part of building a more competitive market.

Evaluation should measure repetition itself: the share of discovery impressions going to already encountered creators, the frequency with which hidden names reappear, and whether less established contributors receive sustained interest after first exposure. Congress should ask for privacy-preserving research access and aggregated results, with protections against exposing personal viewing histories or proprietary security systems.

From a public argument to legislative action

Members of Congress and state lawmakers: I request hearings on concentrated access to customers, audiences, and civic visibility; testimony from independent businesses, creators, emerging leaders, and researchers; and development of a limited Fair Competition and Opportunity Access Act pilot. Please examine practical entry barriers and the independence, costs, and accountability of alternative services.

Citizens and organizations can recommend new legislation, but a member of Congress must introduce a federal bill. The congressional process includes committee consideration and passage through both chambers before presentation to the president. A petition can demonstrate support, but signatures do not enact a statute by themselves. [4]

An organizing effort should include independent businesses, creators, community leaders, civic participation organizations, audience members, accessibility advocates, and researchers. Political candidates across viewpoints should have a fair opportunity to contribute to the discussion. Their role is to test the proposal as well as support it, with transparent rules that prevent capture by well-connected participants.

I ask you to recognize that formal permission to participate can coexist with serious practical barriers. Smaller businesses need credible ways to reach customers; creators need routes to audiences; and emerging leaders and political candidates need lawful opportunities to be heard. Please consider hearings, a defined legislative proposal, and accountable support for additional routes to opportunity. The economic blockade described here should be investigated with evidence, with remedies matched to each sector.

Sources and scope

[1] Klimashevskaia, A., Jannach, D., Elahi, M., and Trattner, C. (2024). A Survey on Popularity Bias in Recommender Systems. User Modeling and User-Adapted Interaction. https://arxiv.org/abs/2308.01118

[2] U.S. Department of Justice (September 2, 2025). Department of Justice Wins Significant Remedies Against Google. https://www.justice.gov/opa/pr/department-justice-wins-significant-remedies-against-google . Historical search findings; no assertion about ultimate appeal outcomes.

[3] Supreme Court. Moody v. NetChoice, LLC, 603 U.S. 707 (2024). https://www.supremecourt.gov/opinions/23pdf/22-277_d18f.pdf

[4] U.S. House. The Legislative Process. https://www.house.gov/the-house-explained/the-legislative-process ; USAGov. How Laws Are Made. https://www.usa.gov/how-laws-are-made

[5] Salganik, M. J., Dodds, P. S., and Watts, D. J. (2006). Experimental Study of Inequality and Unpredictability in an Artificial Cultural Market. Science, 311, 854-856. https://doi.org/10.1126/science.1121066

[6] Montoya, R. M., Horton, R. S., Vevea, J. L., Citkowicz, M., and Lauber, E. A. (2017). A re-examination of the mere exposure effect. Psychological Bulletin, 143, 459-498. https://doi.org/10.1037/bul0000085

[7] Federal Trade Commission (2022). Bringing Dark Patterns to Light. https://www.ftc.gov/reports/bringing-dark-patterns-light

Sources consulted October 2026. Economic blockade is an advocacy framework, not a finding of illegality. The proposed act is not an existing law. Policy recommendations and potential benefits are the essay’s arguments; examples are hypothetical. No personal revenue loss, coordinated suppression, or universal feed pattern is asserted.